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Case Number: 26PSCV00717 Hearing Date: July 7, 2026 Dept: O

Tentative Ruling

(1) DEFENDANT

ELENA CREASON'S DEMURRER TO PLAINTIFF KA THERINE VOSBURG COMPLAINT is MOOT.

(2) DEFENDANT

ELENA CREASON'S MOTION TO STRIKE PORTIONS OF PLAINTIFF KATHERINE VOSBURG'S COMPLAINT is MOOT.

(3) DEFENDANT

ELENA CREASON'S NOTICE OF MOTION AND SPECIAL MOTION TO STRIKE [CCP § 425.16] is GRANTED; Defendant's statements were made to/in connection with the Title IX investigation and Plaintiff failed to submit evidence to show the likelihood of prevailing on the merits.

Background

This is a defamation case.

On February 27, 2026, Plaintiff Katherine Vosburg filed suit against Defendant Elena Creason for slander per se.

On May 6, 2026, the instant anti-SLAPP motion, motion to strike, and demurrers were filed.

On June 17, 2026, oppositions to each were filed.

On June 24, 2026, respective replies were filed.

Discussion

As set forth in *Martin*

v. *Inland Empire Utilities Agency* (2011) 198 Cal.App.4th 611, “Trial courts should either grant or deny such motions in toto, i.e., without leave to amend, prior to ruling on any pending demurrers. A proper ruling on the anti-SLAPP motion would, in most cases, obviate the need to rule on the demurrer at all or, at the very least, in its entirety.” (*Id.* at p. 692.) Accordingly, the court will address the anti-SLAPP motion.

Defendant

brings forth the motion on the grounds that Plaintiff’s lawsuit is a SLAPP, intended to punish and intimidate Defendant for exercising her right to petition/file the Title IX complaint. After all, the Legislature has decreed that courts ‘broadly’ construe the anti-SLAPP statute to further the legislative intent of encouraging “continued participation in matters of public significance’ by preventing the chilling of such participation ‘through abuse of the judicial process.” (*Laker v. Board of Trustees of California State University* (2019) 32 Cal.App.5th 745, 760-761.)

For reasons to be discussed, the court concludes that Defendant has met her initial burden under the anti-SLAPP statute of showing that the conduct underlying the allegations in Plaintiff’s complaint arise from the protected activity of filing a Title IX complaint.[1]

And as for the merits of Plaintiff’s claim, the court determines that Plaintiff has failed to meet her burden as she failed to file admissible evidence. With that, that renders both the motion to strike and demurrer moot. (See *Martin*, supra, 198 Cal.App.4th at p. 629 “[W]e stress...section 425.16 provides no mechanism for granting anti-SLAPP motions with leave to amend.”.)

The Complaint

“[A] claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060, italics added.) Framed differently, the defendant must make a prima facie showing that the allegations that form basis of plaintiff’s claims arise from protected conduct. (*Laker v. Board of Trustees of California State University* (2019) 32 Cal.App.5th 745, 760.)

With that, the court turns to the allegations in the complaint.

As alleged, Plaintiff Vosburg is employed by the INTERVARSITY CHRISTIAN FELLOWSHIP (IV), a national college/university Christian ministry; Plaintiff served as a CSM/Team Leader for the IV group at the Claremont Colleges; In October 2024, Defendant began a romantic relationship with a fellow student and 5CIV member; at Defendant Creason's request, Vosburg counseled Defendant Creason regarding her relationship. As for the defamation cause of action, the complaint alleges the following:

Subsequent

to those efforts [of Plaintiff counseling Creason], Defendant Creason, while she was a student at the Claremont Colleges and a resident of California, made the following false and defamatory statements on or about the late Spring of 2025, and which were discovered by the plaintiff thereafter in the Fall of 2025:

1. Vosburg had an inappropriate and/or sexual relationship with a student.
2. Vosburg was unqualified to be a spiritual leader. 3. Vosburg was enabling, defending, and/or abetting an "abuser[.]... The Defamatory Statements were made and published in public and to numerous people at different times...[t]he Statement has injured Plaintiff's reputation, in both her personal and professional capacities." (Complaint ¶¶10-14, all emphasis added.)

In short, the complaint is that Defendant made the three foregoing statements to people.

1.

Prong 1: Protected Activity

"In the first step of the analysis, the trial court determines whether the cause of action 'arises from' an "act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue."" [Citation] The first step of the anti-SLAPP analysis 'turns on two subsidiary questions: (1) What conduct does the challenged cause of action 'arise[] from';

and (2) is that conduct 'protected activity' under the anti-SLAPP statute?' [Citation]" (Id. at p. 764.)[2]

"The Supreme Court has clarified that 'arising from' means 'based on.' [Citation] This element of the first step of the anti-SLAPP analysis is sometimes referred to as the 'nexus' requirement. [Citation] Conduct constitutes 'protected activity,' if it falls within one of the four categories set out in section 425.16, subdivision (e). These categories, include, in pertinent part: "any written or oral statement or writing made (2) 'in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law . . . (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. C.C.P. Section 425.16(e)."

In this step, courts "look to whether the claims involving protected activity are merely incidental or collateral to the causes of action...." (Id. at p. 772.) When the statements "lie at the heart" of the defamation claim i.e., "provide[] the basis for liability" rather than being merely incidental to it, they are subject to the anti-SLAPP statute. (Id. at p. 768; see also p. 758-759.)

Here,
Defendant focuses on her Title IX complaint.

Defendant "acknowledges making statements in connection with or related to the Title IX investigation." (Motion p. 9:25-26.) According to Defendant's declaration, Defendant submitted a Title IX Complaint against her alleged abuser, a fellow student and 5CIV member, and an investigation ensued. In connection with the Title IX investigation, Defendant states that she believes that Plaintiff acted inappropriately with her alleged abuser at times, but she "never stated to anyone that [she] thought Plaintiff had a sexual relationship with a student." Defendant saw Plaintiff and her alleged abuser together in his room on several occasions, and on one occasion Defendant "encountered [Plaintiff] in [Defendant's] abuser's room lying on his bed." (Creason Decl., ¶11.) (The hearing into the investigation was last month.)

Title IX proceedings are a "statutory hearing procedure" and an "official proceeding authorized by law" under the anti-SLAPP statute. (Id. at p. 764.) Of note, there must be a connection with an issue under review in that proceeding. (Opp. p. 3, citing *Rand Resources, LLC v. City of Carson* (2019) 6 Cal. 5th 610, 627 ["The subdivision thus appears to contemplate an ongoing—or, at the very least, immediately pending—official proceeding. Conversely, if an issue is not presently "under consideration or review" by such authorized bodies, then no expression—even if related to that issue—could be "made in connection with an issue under consideration or review."].) Indeed, various appellate courts have declined to presume speech meets the requirements of section 425.16, subdivision (e)(2) when no official proceeding was pending at the time of the speech. (Ibid.) For example, in *Mission Beverage Co. v. Pabst Brewing Co., LLC* (2017) 15 Cal.App.5th 686, 703, the court determined that "preparatory communications do not qualify as a protected activity if future litigation is not anticipated, and is therefore only a 'possibility'—and this is true even if the communication is a necessary prerequisite to any future litigation." (Id. at p. 703.)[3]

In opposition, Plaintiff advances the following arguments, all of which are unpersuasive as they either misread her own complaint and misread Defendant's declaration. As evidence is required for this step, the court relies upon Defendant's declaration. (Laker, *supra*, 32 Cal.App.5th at p. 759 ["We consider the pleadings and declarations, accepting as true the evidence that favors the plaintiff and evaluating the defendant's evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law."], *emphasis added*.)

First, Plaintiff argues a "deranged student" (i.e., Defendant) "made defamatory statements about the Plaintiff in the late Spring of 2025." (Opp. p. 4:2-3.) The court's only response to this is that it is unnecessary and irrelevant.

Second, Plaintiff argues that the "existence of a Title IX investigation, or because a Title IX complaint was inevitably filed, does not immunize the defendant's malicious comments that were made to third parties before the investigation was initiated by the Claremont Colleges." (Opp. p. 3:19-21, *emphasis added*.) But the

complaint does not allege the statements were made to “third parties.”

Rather, the complaint alleges that “[t]he Defamatory Statements were made and published in public and to numerous people at different times....” (§13.) That could reasonably be interpreted as Defendant making the statements she did during the investigation.

On this note, and as alluded to in reply, perhaps Plaintiff’s omission of the Title IX investigation was intentional. (Reply p. 4:1-5.) Indeed, “[t]he artful pleading doctrine prevents plaintiffs from avoiding some unwanted legal consequence by mischaracterizing the nature of the claim they are asserting.” (Toothman v. Redwood Toxicology Laboratory, Inc. (2026) 120 Cal.App.5th 412, 426, fn. 3.)

Third, Plaintiff argues “there is no evidence that the statements themselves were contained in the Title IX complaint, or that they were the subject of the investigation by the school.” (Opp. p. 4:19-20.) Plaintiff has provided no authority that the Title IX complaint/investigative documents must be attached.

Fourth, Plaintiff argues that Defendant herself claims that she did not report any claims of sexual misconduct between the Plaintiff and the alleged abuser such that the statement cannot have been under review. (Opp. p. 4.) But, again, the complaint alleges that Defendant said, “[Plaintiff] had an inappropriate and/or sexual relationship with a student.” (emphasis added.) So, the complaint could reasonably lend itself to the interpretation that Defendant did not make the statement that Plaintiff allegedly had a sexual relationship with a student, but that Defendant did make a statement that Defendant had an inappropriate relationship with a student. And for reasons above, that is an expression of Defendant’s opinion.

All in all, the court finds Defendant satisfied her burden; she showed that the defamation COA arises from protected activity in that the statements were made to and in connection with the Title IX investigation.

Prong #2: Probability of Success on the Merits

In the second step of the anti-SLAPP analysis, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. “The plaintiff must demonstrate this probability of success with admissible evidence. [1] The plaintiff may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.” (Laker, supra, 32 Cal.App.5th at p. 768; see also Reply citing Sandoval v. Pali Institute, Inc. (2025) 113 Cal.App.5th 616, 625 [“[Plaintiff’s] proof must be made upon competent admissible evidence.”].)

Here, Plaintiff has not met her burden for one simple reason: she has not presented the requisite evidence. She just submits the declaration of her attorney wherein Counsel Murphy says Defendant “fabricated the events” and “had buyer’s remorse.” (The court sustains Defendant’s objections to Counsel Murphy’s declaration.)

Thus, Plaintiff has failed to establish a likelihood of success on the merits. With that, since Plaintiff cannot make this showing, “the court will strike the claim.” (Id. at p. 626.)

Conclusion

Based on the foregoing, the court grants the motion to strike. Defendant is permitted to file a motion for attorney’s fees.

[1] Defendant also argues that the alleged speech is connected to an issue of public interest, but the court need not reach that argument.

[2] In Laker, the state university’s professor’s defamation claim against the university and its associate dean involved protected conduct under anti-SLAPP statute in the form of statements made during and connection with issues relating to ongoing university investigation into claims that department chair harassed student, as required for university and dean to prevail on anti-SLAPP motion; investigation qualified as an official proceeding authorized by statute permitting university to

adopt rules or regulations for the government of their employees, and to hold that statements made directly to investigators during investigation were not protected under anti-SLAPP statute would likely have a chilling effect that would thwart the self-government function of anti-SLAPP statute.

[3] Defendant in reply cites to *Briggs v. Eden Council* for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115 for the proposition that communications preparatory to a proceeding are within the protection of the litigation privilege. (Reply p. 3:19-23.) As *Briggs* was decided well before *Laker*, the court relies upon the latter case for the rules pertaining to anti-SLAPP motions.